

ELIZABETH II



1981 CHAPTER xxxii

An Act to empower the London Transport Executive to construct works and to acquire lands; to confer further powers on the Executive; and for other purposes.
[30th October 1981]

WHEREAS by the Transport (London) Act 1969 the London 1969 c. 35.
Transport Executive (in this Act referred to as "the Executive") were established:

And whereas it is the general duty of the Executive under the said Act of 1969 to exercise and perform their functions, in accordance with principles from time to time laid down or approved by the Greater London Council, in such manner as, in conjunction with the British Railways Board and the National Bus Company, and with due regard to efficiency, economy and safety of operation, to provide or secure the provision of such public passenger transport services as best meet the needs for the time being of Greater London:

And whereas it is expedient that the Executive should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Executive and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the proper officers of the councils of Greater London and the county of Surrey, within which area and county the said works will be constructed or the said lands are situated, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the London Transport Act 1981.

Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and—

1845 c. 20. “ the Act of 1845 ” means the Railways Clauses Consolidation Act 1845;

1863 c. 92. “ the Act of 1863 ” means the Railways Clauses Act 1863;

1923 c. ciii. “ the Act of 1923 ” means the London Electric Railway Act 1923;

1963 c. xxiv. “ the Act of 1963 ” means the London Transport Act 1963;

1964 c. xxvi. “ the Act of 1964 ” means the London Transport Act 1964;

1965 c. xli. “ the Act of 1965 ” means the London Transport Act 1965;

- “ the Act of 1966 ” means the London Transport Act 1966; PART I
—cont.
 “ the Act of 1969 ” means the London Transport Act 1969; 1966 c. xxxiii.
 “ the Act of 1971 ” means the London Transport Act 1971; 1969 c. 1.
 “ the (No. 2) Act of 1971 ” means the London Transport 1971 c. xl.
 (No. 2) Act 1971; 1971 c. lxii.
 “ the Act of 1975 ” means the London Transport Act 1975; 1975 c. xxxi.
 “ the Act of 1976 ” means the London Transport Act 1976; 1976 c. xxxvii.
 “ the Act of 1978 ” means the London Transport Act 1978; 1978 c. xv.
 “ constructed in tunnel ” means constructed in tunnel in
 such manner as does not necessitate the cutting through
 or removal of the surface soil;
 “ the Executive ” means the London Transport Executive;
 “ the limits of deviation ” means the limits of deviation
 shown on the deposited plans;
 “ the subway ” means a pedestrian subway at Piccadilly
 Circus station constructed under section 34 (For
 protection of the Westminster City Council) of the
 Act of 1923, and includes its entrances and exits, and
 any reference in this Act to a subway followed by a
 number means the subway marked with and known by
 that number;
 “ telegraphic line ” has the same meaning as in the Telegraph
 Act 1878; 1878 c. 76.
 “ the underground work ” means such portion of Work No. 2
 and any necessary works and conveniences connected
 therewith as are constructed in tunnel;
 “ the works ” means the works authorised by Part II (Works)
 of this Act.

(2) Any reference to the London Transport Board in any of the provisions incorporated with this Act under section 8 (Incorporation of provisions relating to works), section 14 (Incorporation of provisions relating to lands) and section 15 (Incorporation of protective provisions) of this Act shall be construed as a reference to the Executive.

(3) All distances, lengths and directions stated in any description of works, powers or lands, shall be construed as if the words “ or thereabouts ” were inserted after each such distance, length and direction, and distances between points on a railway shall be taken to be measured along the railway.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

PART I
—*cont.*

Incorporation
of general
Acts.

3. The following Acts and Part of an Act, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

1845 c. 18.

- (a) the Lands Clauses Acts, except sections 127 to 133 of the Lands Clauses Consolidation Act 1845;
- (b) the Act of 1845, except sections 7, 8, 9, 11, 12, 13, 19, 20, 22, 23, 94 and 95 thereof; and
- (c) Part I (relating to construction of a railway) of the Act of 1863:

Provided that—

- (i) for the purposes of the provisions of the Act of 1845 and the Act of 1863, as incorporated with this Act, the expression “the company” where used in the said incorporated provisions means the Executive;
- (ii) the provisions of sections 18 and 21 of the Act of 1845, as incorporated with this Act, shall not extend to regulate the relations between the Executive and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

1950 c. 39.

(A) by the provisions of Part II of the Public Utilities Street Works Act 1950; or

(B) by the provisions of section 42 (For protection of gas, water and electricity undertakers) of the Act of 1963, as incorporated with this Act.

PART II

WORKS

Power to
make works,
etc.

4.—(1) Subject to the provisions of this Act, the Executive may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In Greater London and the county of Surrey—

In the London boroughs of Hillingdon and Hounslow and the borough of Spelthorne—

(Loop railway
at Heathrow.)

Work No. 2 A railway (5,811 metres in length) commencing in the London borough of Hillingdon by a junction with the eastbound tunnel of the Executive's Piccadilly Line railway beneath a point 50 metres north of the junction of Chester Road with Cromer Road West, passing through the

borough of Spelthorne and terminating in the London borough of Hounslow by a junction with the westbound tunnel of the said railway beneath a point 35 metres west of the junction of Lithgow Road and the Southern Perimeter Road at Heathrow:

PART II
—cont.

In Greater London—

In the city of Westminster—

at the Executive's Piccadilly Circus station—

Work No. 3 A widening of Subway No. 1 (31.6 metres in length) commencing at a point 25 metres north of the junction of Regent Street and Piccadilly and terminating at its junction with the ticket hall beneath a point 30 metres east of the junction of Regent Street and Piccadilly: (Widening of Subway No. 1 at Piccadilly Circus station.)

Work No. 3A A widening and diversion of Subway No. 3 (47.4 metres in length) commencing at a point 15 metres south-west of the junction of Regent Street (known as Lower Regent Street) and Piccadilly and terminating at its junction with the ticket hall beneath a point 17 metres north-east of the junction of Regent Street (known as Lower Regent Street) and Piccadilly: (Widening and diversion of Subway No. 3 at Piccadilly Circus station.)

Work No. 3B A widening of Subway No. 5 (23.1 metres in length) commencing beneath a point 20 metres south-east of the junction of Shaftesbury Avenue and Piccadilly and terminating at its junction with the ticket hall beneath a point 15 metres south-west of the junction of Shaftesbury Avenue and Piccadilly: (Widening of Subway No. 5 at Piccadilly Circus station.)

Work No. 3C A widening and diversion of Subway No. 4 (36.6 metres in length) commencing at a point 55 metres south-east of the junction of Shaftesbury Avenue and Piccadilly and terminating by a junction with Work No. 3B at the commencement of that work hereinbefore described. (Widening and diversion of Subway No. 4 at Piccadilly Circus station.)

(2) Subject to the provisions of this Act, the Executive may, within the limits of deviation of Works Nos. 3, 3A, 3B and 3C, construct, provide, maintain and use station accommodation and construct and provide public lavatories in the subsoil of the lands at Piccadilly numbered on the deposited plans 6, 9, 11 and 12 in the city of Westminster.

(3) For the purpose of constructing any of the Works Nos. 3, 3A, 3B and 3C, the Executive may temporarily stop up the subway

PART II
—cont.

affected by such work until the subway is restored to a condition suitable for public use.

(4) Upon the completion of Works Nos. 3A and 3C, the public rights of way which are exercisable over such portions of Subways Nos. 3 and 4 as may be rendered unnecessary by such works shall be extinguished and the Executive may close off such portions of the said subways.

(5) Upon the completion of Work No. 3A and in the event of the entrance on the east side of Regent Street (known as Lower Regent Street) to Subway No. 3 being permanently closed to the public in consequence of the exercise of the powers of this section, the Executive shall fill in the space occupied by such entrance and restore the surface of the ground to as good a condition as the adjoining pavement or as near thereto as may be.

(6) For the purpose of carrying out works of refurbishment to Subway No. 2 the Executive may temporarily stop up that subway until such works have been completed and the subway is restored to a condition suitable for public use.

Power to
open surface
of streets.

5. Subject to the provisions of this Act, the Executive may—

- (a) for the purpose of constructing Works Nos. 3, 3A, 3B and 3C and the station accommodation and public lavatories referred to in subsection (2) of section 4 (Power to make works, etc.) of this Act enter upon, open, break up and interfere with so much of the surface of the following streets as is within the limits of deviation:—

In the city of Westminster—

Regent Street;
Piccadilly;
Piccadilly Circus;
Shaftesbury Avenue;
Glasshouse Street;

- (b) for the purpose of providing access to Works Nos. 3, 3A and 3C make and maintain permanent openings in the footways of so much of the streets known as Glasshouse Street, Regent Street and Piccadilly in the city of Westminster as is within the limits of deviation.

Temporary
stoppage of
streets.

6.—(1) The Executive may, during and for the purpose of the execution of Works Nos. 3, 3A, 3B and 3C and the station accommodation and public lavatories referred to in subsection (2) of section 4 (Power to make works, etc.) of this Act, temporarily stop up and interfere with so much of any of the following streets as is within the limits of deviation and may for any reasonable time divert the traffic therefrom and prevent all persons, other than

those bona fide going to or from any land, house or building abutting on any part of a street so stopped up and interfered with, from passing along and using the same:—

PART II
—cont.

In the city of Westminster—

Regent Street;
Piccadilly;
Piccadilly Circus;
Shaftesbury Avenue;
Glasshouse Street.

(2) The Executive shall provide reasonable access for foot passengers bona fide going to or from any such land, house or building.

7. In the execution of any of the works shown on the deposited plans, the Executive may deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections—

- (a) to such extent downwards as may be found necessary or convenient; and
- (b) to any extent upwards not exceeding 3 metres in the case of the underground work (except so much thereof as is constructed beneath the land comprising the airport at Heathrow in respect whereof the Executive shall not deviate upwards by more than 1·5 metres) and to such extent upwards as may be found necessary or convenient in the case of any other of the works.

8. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation
of provisions
relating to
works.

The Act of 1963—

- Section 9 (Plans, etc., to be approved by Minister before Work No. 1 commenced);
- Section 10 (Provisions as to use of electrical power);
- Section 11 (Compensation for damage by working);
- and
- Section 15 (Power to make trial holes):

The Act of 1965—

- Section 10 (Underpinning of houses near works) except the provisos to subsections (4) and (6) thereof:

PART II
—cont.

The Act of 1978—

Section 10 (Use of sewers, etc., for removing water):

Provided that—

- (i) for the purposes of this Act references in the said sections 9, 10 and 11 of the Act of 1963, as so incorporated, to Work No. 1 authorised by that Act shall be construed as references to the underground work;
- (ii) the Executive shall, so far as is reasonably practicable, so exercise the powers conferred by the said section 10 of the Act of 1965, as so incorporated, as not to obstruct or render materially less convenient the access to any telegraphic line belonging to, or used by, British Telecommunications.

PART III

LANDS

Power to
acquire lands.

9.—(1) Subject to the provisions of this Act, the Executive may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Without prejudice to the generality of the powers conferred upon the Executive by subsection (1) of this section, the Executive may, subject to the provisions of this Act, enter upon, take and use so much of the land delineated on the deposited plans and described in the deposited book of reference and therein numbered 1, 2 and 3 in the London borough of Southwark as they may require for the purposes of constructing, maintaining, protecting and renewing Work No. 1 authorised by the London Transport Act 1980.

1980 c. xxxii.

(3) Subject to the provisions of this Act, the Executive may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes mentioned in subsection (1) of this section without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

(4) The Executive shall not under the powers of this section enter upon, take or use the lands delineated on the deposited plans and described in the deposited book of reference and

therein numbered 8 in the city of Westminster or any part of that land or so much of the land so delineated and described and numbered 13A in the said city as is occupied by part of the Criterion Theatre.

PART III
—cont.

10.—(1) In this Part of this Act “new rights” in relation to any land means easements or other rights in, under or over such land, which are not in existence at the passing of this Act.

Power to acquire subsoil or new rights only in certain cases.

(2) Notwithstanding anything in this Act, the Executive may for the purposes of constructing, maintaining, protecting, renewing and using the works, enter upon, take and use so much of the subsoil and under-surface of or may acquire such new rights as they may require in, under or over—

(a) any railway, river, dock, canal, navigation, watercourse, aqueduct, drain, dyke or sewer; or

(b) any of the lands described in the Schedule to this Act;

without being obliged or compellable to acquire any greater interest in, under or over the same respectively and may give notice to treat in respect of such entry, taking and using.

(3) (a) If, in any case where the Executive enter upon, take and use the subsoil and under-surface of, or require a new right in or under, any of the lands described in the said schedule, they also require to take, use and pull down or open any cellar, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, vault, arch or other construction for the purposes of the works and (subject to the provisions of this Act) the provisions of the Lands Clauses Acts shall extend and apply in relation to the purchase thereof as if such cellar, vault, arch or other construction were lands within the meaning of those Acts.

(b) Section 12 (Acquisition of part only of certain properties) of the Act of 1964, as incorporated with this Act, shall apply in respect of the acquisition by the Executive under this subsection of any cellar, vault, arch or other construction as if the same were a part of land to which section 92 of the Lands Clauses Consolidation Act 1845 applies.

1845 c. 18.

11.—(1) The Lands Clauses Acts, as incorporated with this Act, shall have effect with the modifications necessary to make them apply to the compulsory purchase of subsoil or rights under section 10 (Power to acquire subsoil or new rights only in certain cases) of this Act as they apply to the compulsory purchase of land so that, in appropriate contexts, references in those Acts

Application of Lands Clauses Acts to compulsory purchase of subsoil and new rights.

PART III
—*cont.*

to land are read as referring, or as including references, to subsoil or the rights or to land over which the rights are or are to be exercisable, according to the requirements of the particular context.

(2) Without prejudice to the generality of subsection (1) of this section, in relation to the purchase of new rights in pursuance of section 10 (Power to acquire subsoil or new rights only in certain cases) of this Act—

1845 c. 18.

(a) the Lands Clauses Consolidation Act 1845 shall have effect with the modifications specified in Schedule 1 (except paragraph 4) to the Act of 1976 and as if for the references in that schedule to the Act of 1976 there were substituted references to this Act;

(b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

(3) Notwithstanding anything in this section but save as provided in subsection (3) of section 10 (Power to acquire subsoil or new rights only in certain cases) of this Act, section 92 of the Lands Clauses Consolidation Act 1845 shall not apply to any compulsory acquisition or purchase by the Executive under the said section 10.

As to lands at
Enfield and
Southall.

12. Without prejudice to the generality of the powers conferred upon the Executive by subsection (1) of section 9 (Power to acquire lands) of this Act, the Executive may use the lands delineated on the deposited plans and described in the deposited book of reference as follows:—

(a) In the London borough of Enfield—

The lands numbered 1, 2 and 3 for the purpose of providing a road transport garage and depot with associated facilities on the said lands at Enfield and may construct buildings and reconstruct existing buildings thereon for that purpose together with means of access to and from Hartsway and Queensway; and

(b) In the London borough of Ealing—

The lands numbered 1 for the purpose of providing a road transport garage and depot with associated facilities on the said lands at Southall and may construct buildings and reconstruct existing buildings thereon for that purpose together with means of access to and from Windmill Lane.

13.—(1) The powers of the Executive for the compulsory purchase of the lands and new rights which they are authorised by this Act to acquire (other than the lands referred to in subsection (2) of this section) shall cease on 31st December 1986.

PART III
—cont.

Periods for compulsory purchase of lands and new rights.

(2) The powers of the Executive for the compulsory purchase of the lands which they are authorised by subsection (2) of section 9 (Power to acquire lands) of this Act to acquire shall cease on 31st December 1985.

14. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation of provisions relating to lands.

The Act of 1963—

Section 21 (Power to enter for survey or valuation);

Section 28 (As to cellars under streets not referenced);

The Act of 1964—

Section 12 (Acquisition of part only of certain properties);

Section 14 (Extinction of private rights of way):

The Act of 1965—

Section 13 (Correction of errors in deposited plans and book of reference):

The Act of 1966—

Section 14 (Power to expedite entry):

The Act of 1969—

Section 14 (Disregard of recent improvements and interests):

Provided that the provisions of the said section 21 of the Act of 1963, as so incorporated, shall have effect as if after the word “acquire” there were inserted the words “or use”.

PART IV

PROTECTIVE PROVISIONS

15. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation of protective provisions.

The Act of 1963—

Section 42 (For protection of gas, water and electricity undertakers):

The Act of 1965—

Section 25 (As to works within Metropolitan Police District):

PART IV
—cont.

The Act of 1969—

Section 18 (Crown rights):

The (No. 2) Act of 1971—

Section 21 (For protection of Post Office):

The Act of 1975—

Section 21 (As to metropolitan roads and road traffic, etc.):

The Act of 1976—

Section 13 (For protection of sewers of Thames Water Authority):

Provided that—

- (i) the provisions of the said section 18 of the Act of 1969, as so incorporated, shall have effect as if paragraph (b) of subsection (5) of that section were omitted;
- (ii) the provisions of the said section 21 of the (No. 2) Act of 1971, as so incorporated, shall have effect as if for the reference to the Post Office there were substituted a reference to British Telecommunications and as if for the reference to Works Nos. 1, 2 and 3 of the said Act there were substituted a reference to Work No. 2;
- (iii) the provisions of the said section 13 of the Act of 1976, as so incorporated, shall have effect as if—
 - (a) for the reference in paragraph (8) thereof to section 7 (Incorporation of provisions of Acts of 1963, 1965, 1969 and 1974 relating to works) of the Act of 1976 there were substituted a reference to section 8 (Incorporation of provisions relating to works) of this Act; and
 - (b) in the definition of “the specified works” in paragraph (1), for the reference to the works authorised by the Act of 1976 there were substituted a reference to the works.

For protection
of British
Airports
Authority.

16. Notwithstanding anything in this Act, the Executive shall not exercise the powers of this Act in respect of Work No. 2 without the agreement of the British Airports Authority.

For protection
of British
Telecommuni-
cations.

17. For the protection of British Telecommunications (in this section referred to as “the corporation”) the following provisions shall, unless otherwise agreed in writing between the Executive and the corporation, apply and have effect:—

- (1) If by reason or in consequence of the construction, use or failure of Work No. 2 or any subsidence resulting from Work No. 2 and damage to any telegraphic line belonging to, or used by, the corporation (other than a line the repair of which is not reasonably necessary in view of its intended removal for the purposes of Work

No. 2), or any interruption in telecommunication by means of any such line, shall be caused, the Executive shall bear and pay the cost reasonably incurred by the corporation in making good such damage, or restoring telecommunication, and shall—

(a) make reasonable compensation to the corporation for loss sustained by it; and

(b) indemnify the corporation against claims, demands, proceedings, costs, damages and expenses which may be made or taken against, or recovered from, or incurred by, the corporation;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Executive with respect to any damage or interruption to the extent that such damage or interruption is attributable to the act, neglect or default of the corporation, its officers, servants, contractors or other agents; and

(ii) the corporation shall give to the Executive reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Executive.

(2) The exercise of the powers conferred by section 6 (Temporary stoppage of streets) of this Act in relation to a street shall not affect the powers of the corporation under the Telegraph Acts 1863 to 1916 to maintain, inspect, repair, renew or remove telegraphic lines or to open or break up that street for any of those purposes.

(3) Any difference (including failure to agree) arising between the Executive and the corporation under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

18. For the protection of the company the following provisions shall, unless otherwise agreed in writing between the Executive and the company, apply and have effect:—

For protection of certain oil companies.

(1) In this section, unless the subject or context otherwise requires—

“the companies” means Aviation Fuel Services Limited, B.P. Oil Limited, Esso Petroleum Company, Limited, Hydrant Servicing Company Limited, Mobil Oil Company Limited, Shell U.K. Limited, Texaco

PART IV
—cont.

Limited and Total Oil Great Britain Limited and “the company” means, in relation to a pipeline, each of the companies having a right or interest in the pipeline or to which the pipeline belongs or by which it is maintained and their successors in title;

“in” in a context referring to a pipeline includes under, over, across, along or upon;

“pipeline” means the whole or any part of a pipeline in which the company have a right or interest and includes any ancillary works and apparatus;

“plans” includes sections, particulars and specifications;

“the works” means so much of Work No. 2 and any work or convenience connected therewith as may be the subject of a notice under paragraph (3) of this section:

- (2) Notwithstanding anything in this Act or shown on the deposited plans, the Executive shall not acquire any pipeline under the powers of this Act otherwise than by agreement:
- (3) (a) Not less than four months before commencing to construct Work No. 2 or any part thereof, the Executive shall furnish to the companies a programme for the works proposed and a general indication of the nature and location of those works and, if within 28 days from the receipt by the company of that programme and general indication the company give notice in writing to the Executive that any part of the works indicated in the programme may in any way affect any pipeline, paragraphs (4) and (5) of this section shall apply with respect to that part of those works;
- (b) Upon giving any notice to the Executive under subparagraph (a) of this paragraph, the company shall furnish drawings showing the position and depth of the pipeline and a statement specifying the name and address of the company with which the Executive are to deal under the subsequent provisions of this section in relation to the pipeline affected:
- (4) Not less than three months before commencing to construct the works, the Executive shall furnish to the company plans thereof and shall have due regard to any representations made by the company relating to such plans or to the programme for the works:
- (5) (a) At any time within a period of one month from the receipt by the company of the plans referred to in

paragraph (4) of this section the company may by notice in writing to the Executive specify any reasonable temporary or permanent works or measures (hereinafter referred to as "protective works") which in their reasonable opinion should be carried out or taken by the Executive before the commencement of or during the construction of the works in order to ensure the stability of any pipeline (shown on the drawings furnished by the company under sub-paragraph (b) of paragraph (3) of this section) or to protect it from injury (including injury by subsidence) and such protective works shall be constructed by the Executive at their own expense and under the inspection of the company (if given);

- (b) The Executive shall comply with all reasonable requirements of the company arising from their inspection under sub-paragraph (a) of this paragraph as promptly as practicable after the Executive have been notified of such requirements;
 - (c) The Executive shall nevertheless use their best endeavours to avoid or minimise damage of any kind (including damage by subsidence) to any pipeline the position and depth whereof have not been notified to the Executive by being shown on drawings in accordance with sub-paragraph (b) of paragraph (3) of this section:
- (6) Notwithstanding anything in this Act, no pipeline, other than a pipeline which the company certify in writing is permanently disused, shall be removed from any land in which it is situated, nor shall any right of the company to use, maintain, repair, renew or inspect any pipeline in that land be extinguished, until an alternative pipeline has been provided and is available for use to the reasonable satisfaction of the company:
- (7) (a) Before the company or the Executive do any act or thing which may interfere with existing cathodic protection forming part of a pipeline (which is shown on the drawings furnished by the company under sub-paragraph (b) of paragraph (3) of this section or otherwise brought to the notice of the Executive) or of any apparatus or installations of the Executive (as the case may be) as is to be situated in the vicinity of the other, and thereafter from time to time as may be required by notice given by either party to the other of them, the company and the Executive shall consult together as to the apparatus and measures necessary for the protection of the pipeline and the said apparatus or installations and shall co-operate in making such tests as shall be reasonably necessary either before or after

PART IV
—cont.

the installation of any apparatus for providing or preserving cathodic protection; and the company and the Executive shall take the measures aforesaid which are reasonably necessary and arise from those consultations and tests;

(b) The Executive shall from time to time supply the company with all such information relating to any operations of the Executive which may interfere with any measures for providing or preserving cathodic protection forming part of a pipeline which have been taken by the company or upon which the company have consulted the Executive:

(8) The Executive shall repay to the company the reasonable expenses incurred by the company in or in connection with—

(a) the removal and relaying or replacing of any pipeline (including the provision, laying down or placing of any alternative pipeline) and the provision or preservation of cathodic protection forming part of a pipeline rendered necessary by reason or in consequence of the construction of any of the works;

(b) the cutting off and making safe of any pipeline;

(c) the watching and inspecting of any of the works which is near to or is likely to affect any pipeline; and

(d) any other work or thing rendered reasonably necessary in consequence of the operations referred to in this paragraph or of the works:

(9) If by reason or in consequence of the construction or use of the works or any subsidence resulting therefrom any damage to any pipeline shall be caused or the company shall carry out any works or install any additional cathodic protection or other ancillary apparatus which is reasonably necessary to prevent such damage occurring, the Executive shall—

(a) make reasonable compensation to the company for any loss sustained or additional expense incurred by them; and

(b) indemnify the company against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the company;

by reason or in consequence of any such damage or the carrying out of any such preventive works:

Provided that—

PART IV
—cont.

(i) nothing in this paragraph shall—

(a) impose any liability on the Executive in respect of so much of any damage, loss or additional expenditure as is attributable to the act, neglect or default of the company or their contractors or workmen (such act, neglect or default to include, without prejudice to the generality of that expression, any failure by the company to show upon the drawings furnished under sub-paragraph (b) of paragraph (3) of this section the position and depth of any pipeline with sufficient accuracy to have enabled the Executive by taking reasonable precautions to avoid damage or loss or the need for additional expenditure in respect of that pipeline); or

(b) impose on the Executive any liability to pay compensation in respect of any loss, expense, claim or demand whatsoever for which provision is otherwise made by or under this Act, except in accordance with that provision;

(ii) the company shall give to the Executive reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent in writing of the Executive:

(10) Any difference which may arise between the Executive and the company under this section shall be referred to and settled by arbitration.

19. For the protection of the lord mayor and citizens of the city of Westminster (in this section referred to as “the corporation”) the following provisions shall, unless otherwise agreed in writing between the Executive and the corporation, apply and have effect:—

For protection
of Westminster
Corporation.

(1) In this section—

“the altered subways” means Works Nos. 3, 3A, 3B and 3C and includes the permanent openings in the streets which are to be constructed under paragraph (b) of section 5 (Power to open surface of streets) of this Act for the purpose of providing access to those works:

“the existing subways” means the subways constructed under section 34 (For protection of the Westminster City Council) of the Act of 1923 and includes their exits and entrances;

“the fire brigade” means the London Fire Brigade;

PART IV
—cont.

“ Glasshouse Street ” means so much of that street as is within the limits of deviation of Work No. 3;

“ the operative provisions ” means the provisions of paragraphs (5) and (6) and (8) to (12) inclusive of the said section 34 of the Act of 1923 so far as such provisions impose obligations falling to be performed after the completion of the existing subways;

“ the signed plan ” means the plan signed in duplicate by Clifford Frederick Bonnett on behalf of the Executive and by Alan Joseph Cryer on behalf of the corporation:

- (2) (a) Subject to the qualifications set out in sub-paragraph (b) of this paragraph, the operative provisions shall apply to the altered subways after the completion of each of them as if—

(i) they formed part of the pedestrian subways as defined by paragraph (2) of section 34 (For protection of the Westminster City Council) of the Act of 1923;

(ii) the Executive were the Company referred to in the said section; and

(iii) the reference to the entrance and exit which was to be situate on the Piccadilly Circus station premises of the Company in paragraph (12) of the said section were a reference to the entrance and exit to Piccadilly Circus station in the Criterion building or any entrance and exit which may be substituted therefor;

so that in particular the altered subways shall be maintained and lighted by the Executive at their sole expense to the satisfaction of the corporation and shall for police and other purposes be public footpaths forming part of the highway system in the city of Westminster, subject however to the power of the Executive and the Metropolitan Police to close the altered subways in accordance with the operative provisions as applied by this paragraph;

- (b) The qualifications referred to in sub-paragraph (a) of this paragraph above are the following:—

(i) Any part of Works Nos. 3B and 3C which is not designed for use as a public footpath may be used by the Executive for such purpose as they think fit;

(ii) Works Nos. 3B and 3C may be constructed so as to communicate with a subway to be constructed by the London Pavilion Limited or other the lessees or intended lessees of the Greater London

Council without the consent of the corporation as required by paragraph (5) of the said section 34:

PART IV
—cont.

- (3) The Executive shall not commence the construction of Work No. 3 without giving at least three months' notice in writing to the corporation:
- (4) The Executive shall not without the consent of the corporation carry out the construction of Work No. 3C except in conjunction with the construction of an additional staircase at the Executive's Piccadilly Circus station as shown and marked "New Staircase" on the Executive's drawing numbered D 49970:
- (5) Notwithstanding anything in section 5 (Power to open surface of streets) or section 6 (Temporary stoppage of streets) of this Act, the Executive shall in respect of Glasshouse Street—

(a) not close the carriageway except between 23.30 hours and 09.30 hours on Monday to Saturday (inclusive) and between 23.30 hours on Saturday and 09.30 hours on Monday (inclusive), subject to the right of the fire brigade at all hours to drive their vehicles over the said carriageway in an easterly direction and to such closure being effected by the erection in the positions shown by the letters "A" and "B" on the signed plan of movable barriers of a type to be agreed between the Executive and the corporation;

(b) if required by the corporation, permit to be exhibited on the said barriers notices furnished by them to the Executive to the effect that by virtue of this Act Glasshouse Street is closed to vehicles other than those of the fire brigade;

(c) not use the carriageway when it is obstructed under the provisions of sub-paragraph (a) of this paragraph otherwise than by vehicles serving the Executive's working site;

(d) remove promptly or arrange with their contractors so to remove vehicles serving the Executive's said working site when Glasshouse Street is closed to vehicles under the provisions of sub-paragraph (a) of this paragraph on request by the fire brigade if the said vehicles required to be removed are parked in Glasshouse Street and would prevent or interfere with the passage thereover in an easterly direction of vehicles belonging to the fire brigade;

PART IV
—cont.

(e) pay any reasonable costs incurred by the corporation in altering and removing traffic signs and providing new ones so far as such alteration, removal and provision are reasonably required by the corporation to enable Glasshouse Street to be closed under the provisions of sub-paragraph (a) of this paragraph:

- (6) The Executive may use as a working site for the construction of Work No. 3 the land shown as intended to be used for that purpose on the signed plan so far as such working site is within the jurisdiction of the corporation as highway authority:
- (7) Any public lavatories provided by the Executive under subsection (2) of section 4 (Power to make works, etc.) of this Act shall be constructed in accordance with the requirements of the corporation, who shall repay to the Executive the cost reasonably incurred by them in complying with such requirements so far as it exceeds the cost of an equivalent replacement of the existing public lavatories:
- (8) The Executive shall not interfere with or reduce the size of the existing men's public lavatories adjoining Subway No. 1 to any greater extent than is necessary for the construction of Work No. 3 and, upon the completion of that work, the Executive shall reinstate such lavatories (reduced in size as aforesaid) to a condition no worse than they were in before that work was begun:
- (9) Subject to the provisions of paragraph (10) of this section, the Executive shall not under the powers of this Act carry out without the consent of the corporation any works which make it necessary for the women's public lavatories to be closed during the times when the existing subways are open for public use but shall ensure that at least one unimpeded access is available to the entrance to the lavatories throughout such times:
Provided that nothing in this paragraph shall be taken as preventing the Executive from exercising the powers of subsection (3) of section 4 (Power to make works, etc.) of this Act:
- (10) On the Executive providing, completing and opening for public use new public lavatories pursuant to subsection (2) of section 4 (Power to make works, etc.) of this Act, such lavatories shall be taken over by and for all purposes be the property of the corporation and the provisions of paragraph (9) of this section shall cease to have effect:

- (11) Any difference arising between the Executive and the corporation under this section shall be settled by arbitration.

PART IV
—cont.

20. For the further protection of the lord mayor and citizens of the city of Westminster (in this section referred to as “the corporation”) the following provisions shall, unless otherwise agreed in writing between the Executive and the corporation, apply and have effect:—

For further
protection of
Westminster
Corporation.

- (1) In this section—

(a) “Glasshouse Street” has the same meaning as in paragraph (1) of section 19 (For protection of Westminster Corporation) of this Act;

(b) “the opening” means the permanent opening in or partly in Glasshouse Street, authorised by paragraph (b) of section 5 (Power to open surface of streets) of this Act for the purpose of providing access to Work No. 3;

(c) the works to which this section applies are Work No. 3 and the opening:

- (2) Any authorised officer of the corporation may at all reasonable times enter upon and inspect such part of the works to which this section applies during the execution thereof in Glasshouse Street as may affect any property of the corporation (including the existing men’s public lavatories adjoining Subway No. 1) and the Executive shall give to such officer all reasonable facilities for such inspection, and, if he shall be of opinion that the construction of such works is attended with danger to any property of the corporation or any work belonging to or under the jurisdiction or control of the corporation, the Executive shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing or minimising any damage or injury thereto consistent with the carrying out of the works to which this section applies and shall pay to the corporation the costs reasonably incurred by them in making good any damage done by the Executive to the corporation’s said property:
- (3) Subject to the provisions of Part II of the Public Utilities Street Works Act 1950 in the construction of the opening or in relation to the provision or diversion of statutory undertakers’ mains or services as a consequence of the construction of the opening, no part of the works to which this section applies or of the said mains or services shall (except with the consent of the corporation) be so

1950 c. 39.

PART IV
—cont.

constructed as to interfere with the provision of proper means of drainage of the surface of any highway:

- (4) The works to which this section applies shall after the commencement thereof be carried on as expeditiously as reasonably practicable, subject however to the provisions of paragraph (5) of section 19 (For protection of Westminster Corporation) of this Act, and the Executive shall take all such steps as may be reasonably necessary, subject as aforesaid, to reduce as far as possible the period of interference with Glasshouse Street:
- (5) Except for the alteration, disturbance or interference with the pavement of Glasshouse Street caused by the making of the opening, the Executive shall not alter, disturb or in any way interfere with any refuge, drain, lamp column, traffic sign or apparatus connected therewith or other property (except the existing men's public lavatories adjoining Subway No. 1) or work of the corporation, or under the control of or repairable by the corporation, or the access thereto, without the consent of the corporation and any alteration, diversion, replacement or reconstruction of any such refuge, drain, lamp column, traffic sign or apparatus connected therewith or other property (except as aforesaid) or work which may be necessary shall be made by the corporation or the Executive, as the corporation shall think fit, and any costs and expenses reasonably incurred by the corporation in so doing shall be repaid to the corporation by the Executive:
- (6) The Executive shall only remove such soil or material from any highway as must be excavated in the carrying out of the works to which this section applies:
- (7) The Executive shall only with the consent of the corporation deposit any soil, subsoil, materials or plant on the footway of Glasshouse Street as will obstruct the use thereof by any person or deposit any soil, subsoil or materials on the said footway except within a hoarding:
- (8) All costs, charges and expenses reasonably incurred by the corporation in removing any soil deposited on the footway of Glasshouse Street in contravention of this section shall be repaid to the corporation by the Executive:
- (9) If any part of Glasshouse Street (other than so much of it as forms part of the opening) is broken up or disturbed by the Executive, the Executive shall make good the subsoil, foundations and surface of such part of Glass-

house Street to the reasonable satisfaction of the corporation:

Provided that the making good of such part of Glasshouse Street shall in the first instance be of a temporary nature only and the permanent making good thereof shall be carried out by the corporation as soon as practicable after the completion of the temporary making good and the costs reasonably incurred by the corporation in so doing shall be repaid to the corporation by the Executive:

- (10) (a) The Executive shall not place any hoarding on any part of Glasshouse Street except for such period as may be necessary and then only in such manner as shall be reasonably necessary and the provisions of the Highways Act 1980 relating to hoardings shall apply to any 1980 c. 66. hoarding erected on any part of Glasshouse Street;
(b) For the purposes of the application of section 172 of the said Act of 1980 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section:
- (11) Within three months after the completion of the works to which this section applies, or such longer period as the corporation may agree, the Executive shall remove from Glasshouse Street or, to the reasonable satisfaction of the corporation, demolish or otherwise dispose of all temporary buildings and structures erected in that street for the purposes of, or in connection with the construction of, those works and remove therefrom all surplus materials, plant, machinery and appliances provided or approved in connection therewith and shall so far as is reasonably practicable to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and structures or any surplus materials, plant, machinery and appliances as aforesaid have been placed or which may have been occupied for the purpose of or in connection with the works to which this section applies:
- (12) As soon as reasonably practicable after the completion of the opening, the Executive shall furnish the corporation with a plan and section showing the position and depth of the opening as constructed:
- (13) Wherever in this and in section 19 (For protection of Westminster Corporation) of this Act provision is made for the consent or agreement of the corporation, such consent or agreement shall be given in writing and may be signed by the chief executive of the corporation and shall be subject to such reasonable terms and conditions

PART IV
—cont.

as the corporation may require, but shall not be unreasonably withheld:

- (14) Any difference arising between the Executive and the corporation under this section shall be settled by arbitration.

PART V

MISCELLANEOUS

Planning
permission.

S.I. 1977/289.

21.—(1) In this section “Class XII development” means development authorised by Article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1977 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out).

(2) Subject to the provisions of subsection (3) of this section, in its application to development authorised by this Act, the planning permission granted for Class XII development shall have effect as if the authority to develop given by this Act were limited to development begun within twelve years after the passing of this Act.

(3) Subsection (2) of this section shall not apply to the carrying out of any development consisting of the alteration, maintenance or repair of works or the substitution of new works therefor.

1971 c. 78.

(4) It is hereby declared that any time limit imposed by the provisions of section 22 (Modification of Town and Country Planning Act 1971) of the Act of 1978 or by any other enactment on the planning permission granted for Class XII development, in its application to development comprised in Work No. 2 authorised by the Act of 1978, shall not apply (and shall be deemed never to have applied) to any development consisting of the alteration, maintenance or repair of works or the substitution of new works therefor.

Arbitration.

22. Where under this Act any difference (other than a difference to which the provisions of the Lands Clauses Acts, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Costs of Act.

23. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Executive and may in whole or in part be defrayed out of revenue.

SCHEDULE

Section 10.

LANDS IN RESPECT OF WHICH SUBSOIL OR NEW RIGHTS MAY BE TAKEN AS PROVIDED BY SECTION 10 (POWER TO ACQUIRE SUBSOIL OR NEW RIGHTS ONLY IN CERTAIN CASES) OF THIS ACT

Area (1)	No. on deposited plans (2)
WORK NO. 2	
London borough of Hounslow	1
London borough of Hillingdon	1
Borough of Spelthorne	1
WORK NO. 3	
City of Westminster	3
WORK NO. 3A	
City of Westminster	9
WORKS NOS. 3B AND 3C	
City of Westminster	13, 13A, 14

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